

Gurusharan Kaur v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 31 August 2020 · Writ-C No. 13058 of 2020 · Writ-C No. 13058 of 2020 · **Writ dismissed; relegated to Section 127 appeal for theft assessment.**

HEADNOTE

A writ seeking to quash a recovery citation for electricity dues assessed on an allegation of theft is not entertained. The consumer's remedy is an appeal under Section 127 of the Electricity Act, 2003 read with Clause 8.1 of the Electricity Supply Code, 2005. The petition is dismissed on the ground of alternative remedy.

FACTUAL SUMMARY

Gurusharan Kaur sought quashing of a recovery citation dated 7 January 2020 issued by respondent no. 3 for electricity dues. Counsel for respondent no. 4, the Electricity Department, submitted that the citation followed a provisional assessment of theft charges after a spot inspection and notice, and that no objection had been filed against that assessment, so recovery was being pressed. The Division Bench heard the petitioner and dismissed the writ on alternative remedy.

HOLDING-UNITS

INTERPLAY · EA2003::127

theft assessment — alternative remedy

HOLDING

Where electricity charges are assessed on an allegation of theft, the consumer has an alternative remedy of appeal under Section 127 of the Electricity Act, 2003 read with Clause 8.1 of the Electricity Supply Code, 2005; a writ petition to quash a recovery citation issued on that footing is dismissed on that ground. ¶ 1

PRINCIPLE TAGS

alternate-remedy-section-127-appeal-bars-writ

The Division Bench dismissed the writ against a theft-related recovery citation because an appeal under Section 127 read with Clause 8.1 of the 2005 Supply Code was available. ¶ 1

alternative-remedy-relegation-section-127

The petitioner was relegated to the statutory appeal under Section 127; the Court did not decide the theft assessment or the recovery citation on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION RESTED ON A FINAL ASSESSMENT OR ONLY A PROVISIONAL ASSESSMENT AGAINST WHICH NO OBJECTION HAD BEEN FILED, AND WHETHER A SECTION 127 APPEAL THEREFORE LAY

Counsel for the Electricity Department described the assessment as provisional; the Court did not examine finality or the availability of Section 127 against a provisional assessment. ¶ 1

NOT DECIDED — MERITS AND QUANTUM OF THE THEFT ASSESSMENT AND OF THE RECOVERY CITATION DATED 7 JANUARY 2020

¶ 1